

Court No. - 39

Case :- WRIT - C No. - 26514 of 2020

Petitioner :- Markandey Singh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Babban Singh Rathore

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

As prayed by the learned counsel for the petitioner, let the matter be placed in the additional cause list on 25.1.2021.

Order Date :- 18.1.2021

M. Tariq

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Respondent :- State of U.P. and Another

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Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard learned counsel for the petitioner, learned Standing Counsel for respondent no. 1 and Sri N.K.Tiwari, learned counsel for the respondent no. 2.

Instant writ petition has been filed with the following reliefs :

"I. Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery citation dated 12.11.2019 issued by respondent no. 2 against the petitioner.

II. Issue a writ, order or direction in the nature of mandamus directing the respondent no. 2 to decide the representation of the dated 19.11.2020 within stipulated period which may be fixed by this Hon'ble Court.

III.

IV."

Learned counsel for the petitioner submits that at no point of time, the petitioner had any electricity connection for agricultural purposes and the recovery citation dated 12.11.2019 had been issued against him showing that he was using electricity for running a tubewell. The petitioner has made a representation in this regard on 19.11.2020 but the same is still pending for consideration.

Learned counsel for the Power Corporation, at the very outset, submits that in case the petitioner has any grievance with regard to disconnection of electricity or correction of electricity bill, he may approach before the Consumer Grievance Redressal Forum under Clause 7.10(iii) of the U.P. Electricity Supply Code, 2005.

Considering the submissions advanced by learned counsel for the parties, the writ petition is disposed of with the liberty to the petitioner to move a representation raising his grievances before the respondent no. 2 - Executive Engineer, Electricity Rural/ Urban Distribution Division, Purvanchal Vidyut Vitaran Nigam Limited, Jamaniya, District - Ghazipur under Clause 7.10(iii) of the U.P. Electricity Supply Code, 2005 within a period of three weeks from today. In case any such representation is moved by the petitioner, the same shall be considered and decided by the respondent no. 2 strictly in accordance with law by means of a reasoned and speaking order within a period of one month from

the date of filing of the representation, after affording due opportunity of hearing to him. During the pendency of the proceeding before the authority, no coercive steps shall be taken against the petitioner.

In case the petitioner fails to make any representation within the time allowed, the respondent authority will be at liberty to recover the amount in accordance with law.

Order Date :- 25.1.2021

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